

U.S. DEPARTMENT OF AGRICULTURE
WASHINGTON, D.C. 20250

DEPARTMENTAL REGULATION	Number: DR 3300-001
SUBJECT: Telecommunications & Internet Services and Use	DATE: March 18, 2016
	OPI: Office of the Chief Information Officer, Enterprise Network Services

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1. PURPOSE

This Departmental Regulation (DR) establishes policies and assigns responsibilities for the management and use of telecommunications services, equipment, and resources within the United States Department of Agriculture (USDA). It serves as the overarching policy that addresses major topics applicable to the entire [3300 Telecommunications Management Directives series](#).

2. SPECIAL INSTRUCTIONS/CANCELLATIONS

- a. This regulation supersedes DR 3300-001, *Telecommunications & Internet Services and Use*, dated March 23, 1999.

- b. The use of telecommunications equipment (e.g., mobile devices, computers, local area networks, telephones, facsimile machines) and telecommunications services (e.g., Internet, electronic messaging) by all USDA employees shall be in accordance with the requirements of *Standards of Ethical Conduct for Employees of the Executive Branch*, [5 Code of Federal Regulations \(CFR\) 2635](#) and the Federal Chief Information Officer (CIO) Council's [Recommended Executive Branch Model Policy/Guidance on "Limited Personal Use" of Government Office Equipment Including Information Technology](#).
- c. Agencies and staff offices may supplement this DR when developing their internal operating procedures. Modifications to the intent or purpose of this DR are not allowed. If agencies and staff offices publish a supplement to this DR, one copy of each supplement shall be forwarded to the Office of the Chief Information Officer (OCIO), Enterprise Network Services (ENS) at ens.policy@ocio.usda.gov.
- d. Cyber security policies are issued by Agriculture Security Operations Center (ASOC) and may be found in the 3500 series DRs posted on the Departmental Directives Web site.

3. SCOPE

- a. This DR applies to all USDA agencies and staff offices, contractors, data centers, cloud service providers, cooperative partners, employees, and others working for or on behalf of the USDA.
- b. This policy does not address classified communications.

4. AUTHORITY

This regulation is published pursuant to the authority:

- a. Vested in the Secretary of Agriculture in *General Authorization to Delegate Functions; Publication of Delegations*, [5 United States Code \(U.S.C.\) 301](#) and *Establishment of Department*, [7 U.S.C. 2201](#); and
- b. Delegated to the USDA CIO in *Delegations of Authority by the Secretary of Agriculture and General Officers of the Department, Delegations of Authority to the Deputy Secretary, the Under Secretaries and Assistant Secretaries*, [7 CFR 2.25 \(a\) \(12\)](#).

5. POLICY

- a. The USDA shall:
 - (1) Improve USDA program delivery by implementing procedures and practices

identified in the United States (U.S.) CIO's [*25 Point Implementation Plan to Reform Federal Information Technology Management*](#) (the 25 Point Plan) and migrating to a coordinated, interoperable, secure, and shared USDA enterprise network;

- (2) Use Governmentwide contracts and blanket purchase agreements (BPAs) in accordance with established regulations and interagency agreements, and transition to new contracts based on enterprisewide decision making processes;
 - (3) Ensure that new or existing telecommunications systems and services are aligned in accordance with the USDA Enterprise Information Technology Governance (EITG) process and framework;
 - (4) Maintain a comprehensive inventory of telecommunications equipment and services, which is reviewed and revalidated at least every six months. When equipment and services are determined to no longer be needed in current configurations, agencies and staff offices shall reallocate them for other approved uses, discontinue services, or dispose of equipment through established procedures;
 - (5) Use technical industry standards that are developed by voluntary consensus standards bodies, as directed by [*National Technology Transfer and Advancement Act of 1995*](#);
 - (6) Ensure that telecommunications systems, services, and facilities are fully compliant with [*DR 4030-001, Section 508 Program*](#), and accessible to hearing, speech, and physically impaired individuals;
 - (7) Encourage the use of electronic exchange of information where practical and beneficial;
 - (8) Procure or use telecommunications services and equipment in a manner that promotes information sharing among agencies and staff offices; and
 - (9) Integrate digital strategy and open data requirements and guidance with existing processes and workflows.
- b. When employees use Government and non-Government furnished equipment and resources, they shall comply with the requirements of this DR; [*DR 4070-735-001, Employee Responsibilities and Conduct*](#); [*DR 3505-003, Access Control for Information and Information Systems*](#); and other USDA and Federal guidance.
- c. Employees may use telecommunications and Internet resources for personal matters on an occasional basis provided that the use involves minimal expense to the Government and does not interfere with official business or violate Federal law. Limited personal use of telecommunications and Internet resources shall normally take place during an employee's personal time. This policy follows the Federal CIO Council's [*Recommended Executive Branch Model Policy/Guidance on "Limited*](#)

Personal Use" of Government Office Equipment Including Information Technology.

- d. Employees may not use USDA telecommunications and Internet resources to earn outside income.
- e. Employees may not use telecommunications and Internet resources for activities that are inappropriate or offensive to fellow employees or the public (e.g., accessing sexually explicit materials, hate speech, remarks ridiculing others based on race, creed, religion, color, handicap, national origin).
- f. Pursuant to the authority vested in the *Inspector General Act of 1978*, 5 U.S.C. Appendix 3, Sections 1-12, the <http://www.gpo.gov/fdsys/pkg/USCODE-2012-title5/pdf/USCODE-2012-title5-app-inspector-sec3.pdf> Office of Inspector General is exempt from the provisions in this directive for mission-related activities only.

6. PLANNING

a. Telecommunications Plans

Agencies and staff offices shall develop a centralized telecommunications management plan (CTMP) that specifies how an agency or staff office will centrally manage telecommunications services. When developing a CTMP, the agency or staff office shall use the *25 Point Plan* and the *Clinger-Cohen Act of 1996*.

b. Budget Estimates for Information Technology (IT)

Office of Management and Budget (OMB) *Circular No. A-11, Preparation, Submission, and Execution of the Budget*, requires Federal agencies to submit annual budget estimates for IT.

c. Life Cycle Management (LCM)

The USDA CIO advocates a LCM approach to information resources management, which includes the planning and development of an agency's telecommunications infrastructure. New and existing major IT investments shall be viewed within the context of the EITG process presented in DR 3130-008, Definition of Major Information Technology Investments and the Agriculture System Development Life Cycle (AgSDLC) methodology, as described in the *Integrated IT Governance Framework: Guidebook*. The agency or staff office must complete and approve strategic activities, such as planning and budgeting, before acquiring telecommunications resources.

d. Departmental Approvals

Agency and staff office requests to acquire telecommunications resources shall be submitted for approval in accordance with the USDA *Acquisition Approval Request*

Instructions. Employees with this responsibility must contact the OCIO Capital Planning and IT Governance Division at Capitalplanningdivision@ocio.usda.gov to gain access to the USDA collaboration tool in which this document is stored.

7. ROLES AND RESPONSIBILITIES

a. The USDA CIO shall:

- (1) In accordance with the [Federal Information Technology Acquisition Reform Act \(FITARA\)](#):
 - (a) Establish processes to regularly engage with program managers to evaluate IT resources supporting the strategic objectives of agency and staff offices;
 - (b) Define the Departmentwide policy for the level of detail of planned expenditure reporting for all transactions that include IT resources;
 - (c) Define the development processes, milestones, review gates, and the overall policies for all capital planning, enterprise architecture, and project management and reporting for IT resources;
 - (d) Approve any movement of funds for IT resources that require Congressional notification; and
 - (e) Conduct TechStat reviews, or use other applicable performance measurements to evaluate the use of IT resources.
- (2) Develop a Departmental telecommunications program LCM process to include:
 - (a) Establish and maintain a USDA telecommunications architecture to serve as the framework for all telecommunications investment planning, acquisition, and deployment to ensure:
 - 1 Cost-effective telecommunications system solutions based on a common telecommunications architecture; and
 - 2 Establishment of mission-based performance measures for these telecommunications systems aligned with Departmental performance plans.
 - (b) Establish policies and procedures for the management of telecommunications resources, and provide leadership for the General Services Administration (GSA) and USDA cooperative contract transition process;
 - (c) Review agency and staff office strategic and tactical telecommunications plans,

policies, and procedures;

- (d) Update the [*USDA Information Technology Strategic Plan 2014-2018*](#) in accordance with new requirements included in [*OMB Memorandum M-13-13, Open Data Policy--Managing Information as an Asset*](#);
- (e) Modernize existing systems to leverage application programming interfaces (APIs), which will enable USDA to integrate digital strategy and open data requirements and guidance with existing processes and workflows; and
- (f) Monitor and review telecommunications activities to ensure:
 - 1 Continuous and effective communications with agencies and staff offices, sound understanding of agency and staff office needs, and proper balance between cost and customer satisfaction requirements;
 - 2 Compliance with regulatory requirements and standards;
 - 3 Cost savings and/or cost avoidance are realized; and
 - 4 Maximum benefits are gained from USDA's telecommunications investments in supporting USDA program delivery.
- (3) Provide advice and assistance to agencies and staff offices regarding telecommunications services and facilities to ensure that the Department's telecommunications resources are shared and used effectively and prudently;
- (4) Serve as a liaison for telecommunications activities and interchange between USDA and other Government agencies;
- (5) Provide leadership and direction for Departmentwide initiatives and the optimization and consolidation of telecommunications resources;
- (6) Periodically conduct market surveys to ensure that equipment and services are being acquired at the most economical cost available, determine the need for Departmentwide mandatory-for-use telecommunications resources, and terminate uneconomical contracts;
- (7) Establish a risk assessment program to identify risks to and conduct reviews of metropolitan area networks that connect to the USDA enterprise network;
- (8) Conduct independent assessments of major telecommunications projects to ensure strategies and decisions are sound throughout the various stages of the project;
- (9) Share independent validation and verification (IV&V) results with managers so risks are well understood and risk management approaches are developed before

projects can be authorized to proceed to the next phase of the acquisition process;

- (10) Provide leadership, guidance, and oversight in the establishment and maintenance of inventories of telecommunications resources; and
- (11) Ensure that telecommunications systems are continuously updated to provide reliable voice, data, facsimile, and video conferencing capability between the Secretary of Agriculture, Under Secretaries, and Assistant Secretaries.

b. The ENS Director shall:

- (1) Establish policies and procedures for the management of telecommunications throughout USDA;
- (2) Establish procedures for monitoring, measuring, reporting, and enforcing compliance with this DR and other applicable guidance;
- (3) Manage USDA telecommunications services, equipment, and facilities in accordance with prescribed laws, regulations, standards, and related 3300 series DRs;
- (4) Oversee agency and staff office compliance with USDA telecommunications policies and procedures;
- (5) Review and render decisions on agency and staff office telecommunications policy waiver requests;
- (6) Maintain an electronic file of approved waivers;
- (7) Identify agency and staff office business and program requirements and work with the USDA CIO to develop standardized, cost-effective solutions based on a common telecommunications architecture;
- (8) Work with agencies and staff offices to eliminate redundant or unused services and equipment;
- (9) Include telecommunications requirements and initiatives as part of the telecommunications planning process;
- (10) Use GSA and USDA mandated programs when organizational requirements can be met cost-effectively through the programs; and
- (11) Maintain inventories of USDA telecommunications resources to the extent necessary to:
 - (a) Ensure adequate and appropriate telecommunications resources to support the agency and staff office mission;

- (b) Ensure accountability for USDA telecommunications property; and
 - (c) Meet Departmental and Federal requests for periodic or special inventory reports.
- c. Agency and Staff Office CIOs and Directors shall:
 - (1) Ensure agency and staff office personnel comply with this directive;
 - (2) Ensure agency and staff office internal directives conform to this DR's stated requirements;
 - (3) Identify business and program requirements and work with the USDA CIO to develop standardized cost-effective solutions based on a common telecommunications architecture;
 - (4) Establish a telecommunications management program to support project-level management structures and processes for managing, selecting, controlling, and evaluating investments in telecommunications systems;
 - (5) Establish mission-based performance measures for telecommunications systems that align with agency and staff office performance plans prepared pursuant to the [*Government Performance and Results Act \(GPRA\) Modernization Act of 2010*](#), the [*Digital Strategy at USDA*](#), and OMB M-13-13, *Open Data Policy--Managing Information as an Asset*;
 - (6) Modernize existing systems to leverage APIs;
 - (7) Eliminate redundant, uneconomical, or unused services and equipment;
 - (8) Determine the agency or staff office's telecommunications and Internet services needs and requirements;
 - (9) Include telecommunications requirements and initiatives as part of the telecommunications planning process;
 - (10) Use GSA's and USDA's mandated programs when agency and staff office requirements can be met cost-effectively through use of the programs;
 - (11) Obtain waivers and approvals from the ENS Director when agency and staff office requirements cannot be met through mandated programs;
 - (12) Share telecommunications resources with other agencies and staff offices;
and

(13) Maintain agency and staff office inventories of telecommunications resources to the extent necessary to:

- (a) Ensure adequate and appropriate telecommunications resources to support the agency or staff office mission;
- (b) Ensure accountability for USDA property; and
- (c) Meet Departmental and Federal requests for periodic or quarterly inventory reports.

(14) Forward one copy of agency or staff office published supplements to this DR to OCIO-ENS at ens.policy@ocio.usda.gov.

d. Employees shall comply with the requirements of this DR.

8. PENALTIES AND DISCIPLINARY ACTIONS FOR NON-COMPLIANCE

- a. DR 4070-735-001, *Employee Responsibilities and Conduct*, Section 16 sets forth USDA's policies, procedures, and standards on employee responsibilities and conduct relative to the use of computers and telecommunications equipment. DR 4070-735-001, Section 21, states:
 - (1) A violation of any of the responsibilities and conduct standards contained in this directive may be cause for disciplinary or adverse action; and
 - (2) Disciplinary or adverse action shall be effected in accordance with applicable law and regulations.
- b. Such disciplinary or adverse action shall be effected in accordance with applicable law and regulations such as the Code of Ethics for Government Employees, Office of Personnel Management (OPM) regulations, OMB regulations, and Standards of Conduct for Federal employees.

9. POLICY EXCEPTIONS

- a. All USDA agencies and staff offices are required to conform to this policy. In the event that a specific policy requirement cannot be met as explicitly stated, agencies and staff offices may submit a waiver request. The waiver request shall explain the reason for the request, identify compensating controls/actions that meet the intent of the policy, and identify how the compensating controls/actions provide a similar or greater level of defense or compliance than the policy requirement.

- b. Agency and staff office system owners and CIOs shall address all policy waiver request memoranda to the ENS Director and submit the waiver request to ens.policy@ocio.usda.gov for review and determination.
- c. Waivers to stipulations of this directive that have been granted approval by the ENS Director and that are associated with a control identified in [National Institute of Standards and Technology \(NIST\) Special Publication \(SP\) 800-53 Revision 4](#), *Security and Privacy Controls for Federal Information Systems and Organizations*, shall be recorded and tracked as a Plan of Action and Milestones (POA&M) item in the USDA Federal Information Security Modernization Act (FISMA) data management and reporting tool.
- d. Waivers will expire at the end of the fiscal year or six months from the date of approval, whichever is longer. Unless otherwise specified, agencies and staff offices shall review and renew approved policy waivers every fiscal year.

10. INQUIRIES

Questions and comments concerning the requirements of this regulation should be directed to OCIO-ENS, Telecommunications Management and Governance (TMG) at ens.policy@ocio.usda.gov.

-END-

APPENDIX A

DEFINITIONS

- a. Agriculture System Development Life Cycle (AgSDLC). The system's development life cycle process outlined by the OCIO-Information Resources Management (IRM) for building information systems in a very deliberate, structured, and methodical way, reiterating each stage of the product's life. For USDA, these stages consist of selection and requirements analysis, development, implementation, operations, maintenance, and disposition.
- b. Life Cycle. A set of processes and their temporal relationships that describe a continuous flow of actions and states associated with the existence of system. The linear sequence of phases of a system's existence that span an initiating action to a closing action, with an implied future re-execution of the sequence.
- c. Telecommunications. Includes the transmission, emission, or reception of signals, writing, images, sounds, or intelligence of any nature, by wire, cable, satellite, fiber optics, laser, radio, or any other electronic, electric, electromagnetic, or acoustically coupled means. The term includes the telecommunications facilities and equipment necessary to provide telecommunications services. Telecommunications is a component of the information resources management system. ([DR 3300-020](#), *Telecommunications Mission Area Control Officer (TMACO) – Roles and Responsibilities*, 08/30/10)
- d. Telecommunications Infrastructure. The underlying foundation or framework which supports the delivery of information comprised of telecommunications equipment, services, networks, and related resources.

APPENDIX B

ACRONYMS AND ABBREVIATIONS

AgSDLC	Agriculture System Development Life Cycle
API	Application Programming Interface
ASOC	Agriculture Security Operations Center
BPA	Blanket Purchase Agreement
CFR	Code of Federal Regulations
CIO	Chief Information Officer
CTMP	Centralized Telecommunications Management Plan
DR	Departmental Regulation
EITG	Enterprise Information Technology Governance
ENS	Enterprise Network Services
FISMA	Federal Information Security Modernization Act
FITARA	Federal Information Technology Acquisition Reform Act
GPRA	Government Performance and Results Act
GSA	General Services Administration
IRM	Information Resources Management
IT	Information Technology
IV&V	Independent Validation and Verification
LCM	Life Cycle Management
NIST	National Institute of Standards and Technology
OCIO	Office of the Chief Information Officer
OMB	Office of Management and Budget
OPM	Office of Personnel Management
POA&M	Plan of Action and Milestones
SP	Special Publication
TMACO	Telecommunications Mission Area Control Officer
TMG	Telecommunications Management and Governance
U.S.	United States
U.S.C.	United States Code
USDA	United States Department of Agriculture

APPENDIX C

AUTHORITIES AND REFERENCES

Clinger-Cohen Act of 1996, [40 U.S.C. 1401](#), et seq.

Delegations of Authority by the Secretary of Agriculture and General Officers of the Department, Delegations of Authority to the Deputy Secretary, the Under Secretaries and Assistant Secretaries, [7 CFR 2.25 \(a\) \(12\)](#), et seq.

[Digital Strategy at USDA](#)

[DR 3130-008](#), *Definition of Major Information Technology Investments*, February 27, 2015

[DR 3300-020](#), *Telecommunications Mission Area Control Officer (TMACO) - Roles and Responsibilities*, August 30, 2010

[DR 3505-003](#), *Access Control for Information and Information Systems*, February 10, 2015

[DR 4030-001](#), *Section 508 Program*, September 8, 2014

[DR 4070-735-001](#), *Employee Responsibilities and Conduct*, October 4, 2007

Establishment of Department, [7 U.S.C. 2201](#), et seq.

Federal CIO Council, [Recommended Executive Branch Model Policy/Guidance on "Limited Personal Use" of Government Office Equipment Including Information Technology](#), May 19, 1999

[FITARA](#), December 19, 2014

General Authorization to Delegate Functions; Publication of Delegations, [5 U.S.C. 301](#), et seq.

[GPRA Modernization Act of 2010](#), Public Law 111-352, January 4, 2011

Inspector General Act of 1978, [5 U.S.C., Appendix 3, Sections 1-12](#), et seq.

[National Technology Transfer and Advancement Act of 1995](#), Public Law 104-113, March 7, 1996

[NIST SP 800-53 Revision 4](#), *Security and Privacy Controls for Federal Information Systems and Organizations*, April 2013

[OMB Circular No. A-11](#), *Preparation, Submission, and Execution of the Budget*, July 2013

[OMB M-13-13](#), *Open Data Policy--Managing Information as an Asset*, May 9, 2013

Standards of Ethical Conduct for Employees of the Executive Branch, [5 CFR 2635](#), et seq.

The White House, U.S. CIO, [25 Point Implementation Plan to Reform Federal Information Technology Management](#), December 9, 2010

USDA, OCIO, [Acquisition Approval Request Instructions](#), January 15, 2015

USDA, OCIO, [Integrated IT Governance Framework: Guidebook](#), Version 3.2, April 1, 2014

USDA, OCIO, [USDA Information Technology Strategic Plan 2014-2018](#), April 1, 2014

USDA, OCIO, [3300 Telecommunications Management Directive Series](#)